

7th Legislature



T.L 7-003

To make a lawful act defining the grounds for judicial disqualification.

IN THE CHICKASAW TRIBAL LEGISLATURE

October 20, 1989

Mr. Barney ABBOTT introduced the following bill

A BILL

To establish a system for the setting of grounds for the disqualification of tribal judges.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Grounds for Judicial Disqualification Act of 1990."

SEC. 2. The Legislature finds that--

(1) A need exists for rules of disqualification of judges;

(2) the disqualification of a judge for cause is a matter that affects the public trust of the Chickasaw

Nation;

(3) certain procedural rules regarding grounds for disqualification of a judge are necessary for the appropriate administration of law and justice.

SEC. 3. For the purpose of this Act--

(1) "Judge" means one of the three elected positions in the judicial department as provided in Article XII of the Constitution of the Chickasaw Nation, ratified by the people on August 27, 1983;

(2) "Disqualify" means rendering ineligible or unfit to perform, by reason of an interest in a case or for any other reasons as may be contained in this Act.

(3) "Bias" means mental attitude or disposition of a judge toward a party to a litigation.

(4) "Prejudice" means a condition of mind which sways judgment and renders a judge unable to exercise his functions impartially in any particular case, referring to mental attitude or disposition of a judge toward a party to a litigation.

(5) "Fiduciary" means a person holding the character of a trustee in respect to the trust and confidence involved in it and a person having that duty, created by his undertaking, to act primarily for another's benefit in matters connected with such undertaking.

SEC. 4. The basis for authority of this Act is Article VII, Section 4, wherein the Tribal Legislature is empowered to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) establishes and defines grounds for the disqualification of any tribal judge.

SEC. 5. The provisions of this Act shall apply to all persons elected to serve as a judge for the Chickasaw Nation, and to any others to whom the legislature may, by specific legislative action, cause this Act to apply.

SEC. 6. A judge shall recuse himself, inform the parties or be subject to a motion for disqualification if any of the following obtain:

(a) The judge is interested in the case or the result thereof;

(b) the judge is related to any party;

(c) the judge has been counsel for either party;

(d) the case calls into question:

(1) the validity of any judgment of a judge;

(2) a proceeding in which a judge was counsel or was interested; or

(3) the validity of any instrument or paper prepared or signed by a judge as counsel or attorney;

(e) a judge has personal bias or prejudice concerning a party, or personal knowledge of disputed evidentiary facts concerning the proceeding;

(f) a judge, individually or as a fiduciary, or spouse or minor child residing in a judges's household, has a financial or other interest, that could be substantially affected by the outcome;

(g) a judge has publicly stated an opinion about the outcome of the facts of a case prior to hearing.

SEC. 6. Parts (a) through (g) of Section 5 shall be prima facie and conclusive evidence of bias and prejudice; however, nothing contained therein shall prevent the court from recognizing other grounds as a proper basis for recusal or disqualification, if the same represents a challenge to confidence in the legal system.

SEC. 7. A judge shall prevent even the appearance of partiality or impropriety.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on October 20, 1989, by a vote of 12 ayes, 0 nays and 0 abstentions.

PASSED

Joe Kent Abbott
Chairperson
Chickasaw Tribal Legislature

David R. Stout
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor, the Chickasaw Nation

Date: OCT 23 1989